

2010 WL 4805866 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Rafael Solano FERRERAS, Plaintiff(s),

v.

THE CITY OF NEW YORK, the New York City Police Department, P.O. Jerry Alcoser, P.O. **Dominic Robinson** and P.O. Michael Falcione, Defendant(s).

No. 0308929-2010.
October 22, 2010.

Summons

kevin t. McCarthy, McMahon, McCarthy, & Verrelli, Attorney for Plaintiff, 147 East 233rd Street, Bronx, New York 10470, (718) 324-8900.

To The Above Named Defendant(s):

YOU ARE HEREBY SUMMONED: to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs Attorney within 20 days after the service of the Summons, exclusive of the day of service (or within 30 after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint

Dated: Bronx, New York

October 25, 2010

VERIFIED COMPLAINT

PLAINTIFF, by his attorneys, McMAHON, MCCARTHY & VERRELLI, as and for his VERIFIED COMPLAINT, alleges upon information and belief as follows:

1. That at all times herein mentioned, the PLAINTIFF, Rafael Solano Ferreras, was and is a resident of the State of New York residing at 2454 Webb Avenue, Apt. #3F Bronx NY 10468.
2. That at all times herein mentioned, the DEFENDANT, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, the DEFENDANT, NEW YORK CITY POLICE DEPARTMENT was a sub-division of the Defendant THE CITY OF NEW YORK.
4. That at all times herein mentioned, including on September 11, 2009, the DEFENDANTS Jerry Alcoser, **Dominic Robinson** and Michael Falcione were police officers employed by the DEFENDANTS The City of New York and The New York City Police Department, and were acting in such capacity as the agents, servants and employees of said DEFENDANTS.

5. That on or about September 11, 2009, DEFENDANT Police officers Jerry Alcoser, **Dominic Robinson** and Michael Falcione, in their capacity as agents, servants and employees of the DEFENDANTS The City of New York and The New York City Police Department, effectuated arrest #B09672090.

6. On or about November 24, 2009, Plaintiff presented in writing to the Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, in a Notice of Claim, the claim hereinafter set forth upon which this action is founded for adjustment, and more than thirty (30) days have elapsed since said presentation of such claim and DEFENDANTS, THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, have wholly neglected and refused to make any adjustment or payment thereof for more than (30) days after presentation of said claim as aforesaid and this cause of action is commenced within one year from the date when it occurred, all in accordance with the statutes and rules made and provided. (See attached copy of Notice of Claim, herein marked as Exhibit 1).

7. That PLAINTIFF has duly complied with all of the conditions precedent to bringing this action.

AS AND FOR A FIRST CAUSE OF ACTION FOR BATTERY

8. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “7” of the Complaint as if more fully set forth herein.

9. That on or about September 11, 2009 at approximately 12:05 AM in the vicinity of West Fordham Road and Webster Avenue, Bronx, New York, the Defendants, in their capacity as police officers wrongfully touched, grabbed, struck, threw to the ground, handcuffed, and seized the Plaintiff, Rafael Solano Ferreras, causing him physical distress, mental suffering and serious and severe personal injury. That at no time during the previously mentioned incident did the Defendants have legal cause to grab, strike, throw to the ground, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal contact with his person, nor was it protected by law.

10. As a result of the incident and the injuries to the plaintiff resulting therefrom were caused solely by reason of the Defendants' battery against the Plaintiff without any provocation on the part of the Plaintiff.

11. As a result of the foregoing, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of any lower Court.

AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT

12. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “11” of the Complaint as if more fully set forth herein.

13. That on or about September 11, 2009, at approximately 12:05 AM, in the vicinity of West Fordham Road and Webster Avenue, Bronx, New York, the Defendants placed Plaintiff in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. That all of the above actions placed the Plaintiff in imminent fear of physical contact and/or injury and at no time did the Defendants have legal cause to place Plaintiff in imminent fear of physical contact, nor did the Plaintiff consent to this illegal activity, nor was it protected by law.

14. That the incident and the injuries to the Plaintiff resulting therefrom were caused solely by reason of the Defendants' assault against the Plaintiff without any provocation on the part of the Plaintiff.

15. As a result of the foregoing, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of any lower Court.

AS AND FOR A THIRD CAUSE OF ACTION FOR WRONGFUL ARREST AND IMPRISONMENT

16. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “14” of the Complaint as if more fully set forth herein.

17. That on or about September 11, 2009, at approximately 12:05 AM, in the vicinity of West Fordham Road and Webster Avenue, Bronx, New York, the Defendants without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested, restrained and took the liberty of Plaintiff. That Defendants took Plaintiff into custody to a police station in the County of the Bronx and there charged him with the crimes listed on arrest #B09672909. The Plaintiff was thereafter held in custody for nine hours before he was released by Central Booking. The Defendants intentionally confined the Plaintiff to a bounded area without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

18. The arrest and imprisonment of the Plaintiff and the injuries to the Plaintiff resulting therefrom were caused solely by reason of the wrongful arrest and Imprisonment by the Defendants without any probable cause.

19. As a result of the foregoing, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of any lower Court.

AS AND FOR A FORTH CAUSE OF ACTION FOR NEGLIGENT SUPERVISION OF POLICE OFFIDERS

20. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “19” of the Complaint as if more fully set forth herein.

21. DEFENDANTS, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT were negligent in that prior to and at the time of the acts complained of herein, and due to the prior history of the Police Officers, Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, knew or should have known of the defiant, rebellious, unsuitable and violent disposition of said Defendant police officers or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their defiant, rebellious, unsuitable and violent disposition and the fact that these officers were not suitable to be hired and retained as police officers by the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and that due to their lack of adequate training and supervision, these police officers DEFENDANTS arrested, struck with their bare hands, individuals and more specifically the Plaintiff.

22. The incident and the injuries to the Plaintiff resulting herefrom were caused solely by reason of the negligent hiring, training and supervision of the Defendant police officers and by the Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and without any negligence or culpable conduct on the part of the Plaintiff.

23. As a result of the foregoing, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of any lower Court.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR DEPRIVATION
OF CONSTITUTIONAL RIGHTS UNDER 42 USC § 1983**

24. Plaintiff repeats and realleges each and every allegation contained in paragraph numbered “1” through “23” of the Complaint as if more fully set forth herein.

25. DEFENDANT POLICE OFFICERS JERRY ALCOSER, **DOMINIC ROBINSON** and MICHAEL FALCIONE were at all times relevant, duly appointed and acting officer of the New York City Police Department.

26. That at all times herein mentioned, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

27. Plaintiff was and is at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

28. That the Defendant, CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.

29. That on or about September 11, 2009, while effectuating Arrest #B09672909, the arrest of the Plaintiff, the Defendants pushed, grabbed, threw to the ground and struck the person of the Plaintiff with their hands, and other parts of their persons with an excessive and unreasonable use of physical force. That they falsely arrested, illegally seized and maliciously prosecuted the Plaintiff without probable cause or a legal right to do so. That they also filed baseless charges against Mr. Rafael Solano Ferreras causing him to make numerous court appearances to defend his liberty against said baseless charges.

30. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom of summary punishment;
- b. Freedom from cruel and inhuman punishment;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from false imprisonment;
- f. Freedom from assault to his person;
- g. Freedom from battery to his person;

31. That the Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of or with deliberate indifference to the Plaintiff's rights under the Fourth, Fifth, Eighth, Ninth and Fourteenth amendments to the United States Constitution.

32. That the direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of both a physical and psychological nature and was forced to endure pain and suffering all to his detriment.

33. That the incident and the injuries to the Plaintiff resulting therefrom were caused solely by reason of the Defendants' deprivation of the Plaintiffs Constitutional rights without any justification, probable cause, consent or provocation by the Plaintiff.

34. As a result of the foregoing, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of any lower Court.

AS AND FOR A SIXTH CAUSE OF ACTION FOR NEGLIGENT HIRING AND TRAINING

35. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered "1" through "34" of the Complaint as if more fully set forth herein.

36. That at all times herein mentioned, it was the duty of the Defendants to select and screen for hiring, for retention or discharge as employees those who were not fit, suitable, properly trained and instructed, constituted potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits and characteristics or unsuitable or unstable or contraindicated for such employment.

37. That at all times herein mentioned, it was the duty of the Defendants to train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of its servants, agents, employees and/or personnel.

38. Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have fundamentally failed to train and adequately supervise the Defendant police officers in the fundamental law of arresting an individual without using excessive force, without violating the Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution, without depriving the Plaintiff of his liberty and without maliciously prosecuting the Plaintiff, and where an individual, especially as here, has not committed a violation of the law.

39. The Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, failed to instruct its police officers and failed to implement department wide policies regarding the minimum proper amount of force used to effectuate an arrest; the necessity of probable cause before every arrest is made; the amount of force that is deemed excessive in effectuating an arrest.

40. The Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were negligent due to their failure to implement a policy with its Police Department and actively enforce the law, due to the following being lacking:

1. That an individual cannot be arrested without a warrant or probable cause being present.
2. Officers must be taught that excessive physical force cannot be used against an individual who is not resisting arrest.

41. That the foregoing acts, omissions, systemic failures are the customs and policies of the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT which caused the police officers to falsely arrest, execute said arrest with excessive and unreasonable force, commit an assault and battery on the Plaintiff and maliciously prosecute the Plaintiff under the belief that they would suffer no disciplinary actions for their failure to take proper and prudent steps in this case.

42. The incident and the injuries to the Plaintiff resulting therefrom were caused solely by reason of the negligence of the Defendants in their hiring, monitoring, training and retention of the Defendant police officers with the knowledge that said officers were unsuitable, unstable and unfit to act and serve and unsuitable, unstable and unfit to continue to act and serve as police officers. By reason of the Defendants' breach of its duties, the Plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the Plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress and well as severe physical, mental and emotional injuries which are permanent in nature and duration as hereinbefore alleged.

43. As a result of the foregoing, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of any lower Court.

AS FOR THE SEVENTH CAUSE OF ACTION FOR NEGLIGENCE

44. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "42" of the complaint as if more fully set forth herein.

45. That on or about September 11, 2009 at approximately 12:05 am in the vicinity of West Fordham Road and Webster Avenue, Bronx, New York, the Defendants, in their capacity as police officers, wrongfully touched, grabbed, struck, threw to

the ground, handcuffed, and seized the Plaintiff, Rafael Solano Ferreras, about his person, causing him to sustain serious and severe personal injuries as hereinafter alleged.

46. The injuries to the PLAINTIFF resulting therefrom were caused solely by reason of the negligence of the Defendants, their agents, servants, contractors and/or employees.

47. That as a result of the foregoing, the PLAINTIFF, Rafael Solano Ferreras, was rendered sick, sore lame and disabled, sustained serious physical injuries, severe nervous shock, mental anguish and great physical pain; was and will continue to be confined to hospital, bed and home for long periods of time; was and will continue to be compelled to undergo medical aid, treatment and attention and to expend diverse sums of money for same; was and will continue to be prevented from engaging in his usual activities and duties for long periods of time; all with the attendant losses and, since some of his injuries are believed to be of a permanent and lasting nature, this Plaintiff will continue to suffer similar damages, pain and suffering in the future.

48. This action falls within one or more of the exceptions of CPLR Article 16.

49. That as a result of the foregoing, the PLAINTIFF, Rafael Solano Ferreras, has been damaged in a sum in excess of the jurisdictional limits of this Court.

WHEREFORE, PLAINTIFF demands judgment against the DEFENDANTS in a sum in excess of the jurisdictional limits of this court, together with interest, costs, disbursements and the legal fees of this action.

Dated: Bronx, New York

October 25, 2010

Yours etc

<<signature>>

kevin t. McCarthy

McMahon, McCarthy & Verrelli

Attorney for PLAINTIFF(S)

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TO:

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